

LEASE AGREEMENT — NIKE STORE (UNIT 104)

Lease agreement - lease_nike_104 - Generated from Operio source markdown

This Lease Agreement is entered into by and between **Operio Mall Properties Ltd.** (Landlord) and **Nike Retail Operations LLC** (Tenant) for the premises located at Unit 104, Sector B.

Section 9. Maintenance and Repairs

Section 9.1 - Tenant AHU Maintenance

The Tenant shall, at its sole cost and expense, maintain, repair, and replace all components of the Air Handling Unit (AHU) serving the leased premises (Premises HVAC), provided that the cost of any single repair or maintenance event does not exceed **One Thousand Dollars (\$1,000.00)**.

- **Routine Maintenance:** The Tenant is responsible for all routine filter replacements, belt adjustments, and coil cleanings.
- **Limitation of Liability:** If a licensed mechanical contractor determines that a repair event requires structural replacement of the compressor or coils, or if the estimated cost of a single repair event exceeds **\$1,000.00**, the Landlord shall assume operational and financial responsibility for such repair, subject to Tenant reimbursing the Landlord for the first \$150.00 of such repair cost.

Section 9.2 - Electrical Systems

The Tenant shall maintain all lighting fixtures, lamps, LED drivers, decorative track heads, ballasts, dimmers, and switches located within the Premises. Landlord is responsible for main electrical risers, feeders, and distribution panels feeding Unit 104 up to the electrical demarcation point.

- **Fixture-Level Failures:** Burned bulbs, failed drivers, damaged switches, and isolated ballast failures within a single lighting run are the Tenant's responsibility.
- **Supply-Side Instability:** If multiple lighting zones flicker simultaneously, separate circuits show voltage fluctuation, breakers nuisance-trip, or newly replaced lamps/ballasts repeatedly fail within a short period, the Landlord must inspect the upstream panel, neutral, and feeder serving Unit 104.
- **Shared-Cause Repairs:** Where Landlord confirms an upstream voltage or panel defect, the Landlord shall repair the panel/feed issue. The Tenant remains responsible for replacing store-owned decorative fixtures unless the Landlord's electrical defect is documented as the direct cause of the fixture damage.

Section 13. Promotions, Launches, and Queue Control

Section 13.1 - High-Traffic Product Launches

Tenant may conduct branded launches, limited-release merchandise drops, autograph sessions, or other special events within the Premises, provided that no aspect of the activation obstructs common area circulation or fire egress without Landlord's prior written approval.

- **Corridor Queueing:** Any event expected to create a queue, lineup, or crowd spillover into the mall corridor requires Landlord review at least **10 business days** in advance together with an event operations plan.
- **Required Event Plan Contents:** The event plan must describe anticipated attendance, queue length, staffing, barricades or stanchions, security requirements, opening-hour impact, and customer overflow procedures.
- **Landlord Control of Common Areas:** Landlord may impose corridor routing, security staffing, housekeeping, or time-window restrictions for any event affecting common areas. Related common-area control costs may be charged back to the Tenant.
- **No Self-Help Occupation of Common Areas:** Tenant may not independently occupy corridor space, tape off mall walkways, or form exterior lines in common areas without written approval from Landlord operations.